After accounting for the time and hourly rate reductions above, plaintiffs' reasonable attorney fees come out to a total of $15,123.50 (see Jacobson Decl. ¶ 73, Ex. 24 [billing records]; Jacobson Reply Decl. ¶¶ 8-9), as follows:

Attorney	Year	Rsbl. Rate	Hours	Amount
Kevin Jacobson	2023	$500	0.6	$300.00
	Eff. Jan. 2025	$500	0.2	$100.00
	Eff. May 2025	$500	0.7	$350.00
Kim Anglin	2023	$400	1.7	$680.00
Siyun Yang	2023	$300	10.3	$3,090.00
	2024	$350	1.8	$630.00
	2025	$375	7.6	$2,850.00
Nicholas Yowarski	2024	$375	0.1	$37.50
	2025	$400	1.4	$560.00
Nicolas Lee	2025	$450	2.4	$1,080.00
Matt Xie	2025	--	--	$0.00
Solange Tadros	2025	--	--	$0.00
Derek Chipman	2025	$395	6.8	$2,686.00
	2026	$450	5.8	$2,610.00
Joshua Kohanoff	2025	$375	0.4	$150.00
			TOTAL:	**$15,123.50**

Plaintiffs' request for a multiplier enhancement is denied. (See *Ketchum, supra*, 24 Cal.4th at p. 1132 [multiplier factors].) This case did not involve novel or difficult legal or factual issues, and plaintiffs' counsel did not display any exceptional skill in prosecuting the matter. There is no evidence that this case precluded plaintiffs' counsel from taking on other clients. As for the contingent nature of the fee award, this factor is already accounted for and reflected in the high hourly rates granted above.

Plaintiffs shall give notice.

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Coconut Funding Corp. vs. Pearlman

2025-01479665

Motion for Preliminary Injunction

Plaintiff Coconut Funding Corp.'s application for preliminary injunction is GRANTED in part and DENIED in part. The court orders that a preliminary injunction shall issue on the following terms, upon plaintiff posting bond within seven calendar days after the hearing, in an amount to be determined at the hearing. (Code Civ. Proc., §§ 526, subd. (a) [authorizing injunctive relief], 526, subd. (a) [bond]; *Costa Mesa City Employees' Assoc. v. City of*

		Costa Mesa (2012) 209 Cal.App.4th 298, 309 [generally, injunctive relief request requires consideration of whether plaintiff is likely to suffer greater injury from denial of the injunction than defendant is likely to suffer if it is granted, and whether there is a reasonable probability that plaintiff will prevail on the merits.) Defendant's request for judicial notice is DENIED. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents]; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607-608 [materials prepared by private parties and merely on file with state agencies not ordinarily a proper subject of judicial notice].) Defendant's evidentiary objection no. 4 to the Jacob Pearlman Decl. is SUSTAINED (lacks foundation, lacks personal knowledge). Defendant's remaining evidentiary objections are OVERRULED. Plaintiff's evidentiary objections to the Robert Pearlman Decl. in support of the Opposition are OVERRULED. Moving party has provided sufficient evidence to show a probability of prevailing on the merits of its 1st cause of action for misappropriation of trade secrets. (Civ. Code, § 3426.1; *Reeves v. Hanlon* (2004) 33 Cal.4th 1140, 1155 [elements]; *Lam v. Ngo* (2001) 91 Cal.App.4th 832, 844 ["A single cause of action can sustain a preliminary injunction"].) Moving party's evidence shows that it maintained information on its Dropbox cloud server, and in its Salesforce account, regarding customers, as well as lenders and investors, that satisfies the requirements for trade secrets. (Civ. Code, § 3426.1, subd. (d); J. Pearlman Decl., ¶¶ 2-13 [secrecy measures, independent value].) Moving party has also provided evidence that defendant had access to this information while employed by plaintiff (J. Pearlman Decl., ¶¶ 14-17, 21, 22, 24); and that the desktop computer used by defendant during his employment with plaintiff showed extensive access to customer and lender/investor information immediately prior to defendant leaving plaintiff's employment (Berryhill Decl., ¶¶ ; J. Pearlman Decl., ¶¶ 21, 22.) Moving party further provides evidence that defendant had access to a laptop computer belonging to plaintiff, which was not returned until March 28, 2025. (J. Pearlman Decl., ¶ 19.) Defendant has not provided sufficient evidence disputing the

showing in the moving papers that the customer, lender, and/or investor information satisfied the statutory requirements for a trade secret. (Civ. Code, § 3426.1, subd. (d).)

Moving party has provided sufficient evidence to show a probability of prevailing on the merits of the remaining elements of its 1st cause of action for trade secrets, and for injunctive relief. (*Reeves v. Hanlon*, *supra* [elements]; J. Pearlman Decl., ¶¶ 14-17, 19-22, 24-27 [access, misappropriation], 23 [proximately caused damages], 29, 30 [balance of harms]; Berryhill Decl., ¶¶ 14-26 [acquisition].)

On the other hand, moving party has not shown that it is entitled to the extent of the relief requested. First, moving party has not shown that information in its "MCA-Track" account was "the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civ. Code, § 3426.1, subd. (d)(2); J. Pearlman Decl., ¶ 25 [stating only that the "performance data contained in Coconut Funding's MCA-Track account is highly confidential and constitutes trade secrets;" no other supporting information].)

Second, the requested injunction contains some terms that are vague and/or overbroad. (*Midway Venture LLC v. County of San Diego* (2021) 60 Cal.App.5th 58, 92 ["An injunction must be narrowly drawn to give the party enjoined reasonable notice of what conduct is prohibited" and "must be sufficiently precise to provide a person of ordinary intelligence fair notice that her contemplated conduct is forbidden"].) Considering the balance of harms, the court finds that narrower orders are warranted.

The court therefore orders that Defendant Robert Pearlman dba Working Capital Network, his employees, agents, independent contractors, and all those acting in concert or participation with him, are enjoined and restrained from:

1. Using, disclosing, misappropriating, and/or profiting from Plaintiff's customer and lender / investor information, as maintained in Plaintiff's Dropbox cloud server, Salesforce accounts, and on Plaintiff's physical computers (including desktops and laptops), as of March 28, 2025; including, but not limited to customer lists, contact information, financial information, contract terms, and records; lender lists, information, and records; underwriting standards; marketing and financial data; business and funding models, strategies, and objectives; and personnel information.

		2. Initiating contact, or soliciting, any person or business entity doing or having done business with Plaintiff, during the time of Defendant's employment with Plaintiff. This does not preclude contact initiated by customers or former customers, nor preclude response by defendant to contact initiated by customers or former customers. 3. Directly or indirectly altering, destroying, or disposing of any evidence, in any form, relating to this action, including without limitation, emails and paper and electronic documents, including current or archived electronic logs, metadata, and directories. Plaintiff's remaining requests for injunctive relief are DENIED. The other requested relief is mandatory in nature without a showing of necessity, and/or duplicative of the relief already ordered above. (See *Daly v. San Bernardino County Bd. of Supervisors* (2021) 11 Cal.5th 1030, 1041 [prohibitory injunction "operates to preserve the status quo, while mandatory injunction "commands some change in the parties' positions"]; *Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 ["The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established"].) The preliminary injunction shall issue upon Plaintiff posting a bond within seven calendar days after the hearing, and shall remain in effect during the pendency of this litigation, and/or until further order of the court. Case Management Conference set this date is vacated. Jury Trial set for July 26, 2027 at 8:30 a.m. in Department C44. Moving party shall give notice.
3	**Frey Environmental, Inc vs. Frietas** **2025-01458158**	**Motion to Be Relieved as Counsel of Record** Continued to 8/20/26. See minute order dated 6/16/26.
4	**Kiani vs. Koffey** **2025-01484637**	**Motion for Judgment on the Pleadings** No tentative.
5	**Maaranu vs. Ponder**	**Motion to Compel Arbitration by Defendants Darnell Ponder, et. al**